

THE RIGHT TO FOOD

Research by Charles Pavitt

The right to food - by Charles Pavitt Executive summary

1.

Food is a basic necessity to human life, it nourishes us to survive. It gives us life, and if it is a basic human need, why isn't it our basic human right to have access to it. [This could be supported by the United Nations Office of the High Commissioner for Human Rights (OHCHR), which discusses the right to adequate food under international human-rights law.] However, the fact that something is necessary for survival does not automatically establish that it is a legal or moral right. This raises the wider question of whether access to basic necessities should create a responsibility for the state to ensure that individuals can obtain them. But yet instead, nationally widespread corporations make profit off of our basic needs in order for survival. The right to life should be non-negotiable in our country, and it perplexes me how nation wide businesses are able to gain profitable income off of the poor, those living in poverty. This does not necessarily mean that businesses making profits from selling food is itself wrong, rather it raises the question of whether the market alone can adequately guarantee access to food for those who cannot afford it.

In the UK, 14.3 million people per year struggle to access 3 basic meals per day. 4.5 million of whom are children. [The 14.3 million figure could be sourced from The Food Foundation's Food Insecurity Tracker / 2026 food-insecurity research. The 4.5 million figure can be sourced from UK Government statistics on children living on relatively low income.] These figures should be examined carefully according to how "food insecurity" is defined and measured, as food insecurity can encompass more than simply being unable to eat three meals a day. Our education system provides that every child in a state funded school, has an equal opportunity in their educational praus, and post school (16+), have the opportunity for work/education. I find this statement to be inadequate. If a child is struggling to be fully nourished through their day, how can teachers, parents, peers, expect them to perform their day to day activities, if they themselves aren't nutritionally fuelled enough to do so ? [Evidence concerning the relationship between child poverty, nutrition and children's outcomes could be drawn from UK Government research, academic studies and organisations such as the Food Foundation.]

Incorporating a right to life or, more specifically, considering whether a legally protected right to adequate food should exist will indeed not only create equal opportunity for those in poverty, in regards to work or education, but will also raise those out of poverty in doing so. However, whether this would actually reduce poverty depends upon the precise form the policy takes and should therefore be examined using economic evidence. Food bills, on a yearly average cost an average person (with a 2000 kcalories a day intake), will cost roughly £2,700 a year. Moreover, for a child it would cost roughly £1,500 a year. [These figures should be supported by a food-cost source such as the Food Foundation's food-price/basic-basket research or relevant government data.] Removing this cost from those who, especially are in poverty, can allow for more financial leverage for those who need it most. This would as a whole, cost £25 billion for the UK. [The £25 billion estimate should be supported by your own calculation using the relevant population and food-cost figures, with the underlying figures referenced.] This estimate depends heavily on what is meant by a "right to food". If the state were required to provide food to everyone, the cost could differ substantially from a policy targeted at households experiencing food insecurity or low incomes. To put that into perspective, that is 0.8% of the UK GDP, although this comparison should be treated carefully because GDP measures economic output, whereas government expenditure is a flow of public spending. in comparison to the ultra wealthy of the UK, which take up an astonishing 22% of the UK GDP. Rather than comparing the wealth of the ultra-wealthy directly with GDP, the distribution of wealth and income should be examined using appropriate measures of inequality. [For this section, use ONS data or another authoritative source on UK GDP and wealth/income distribution rather than directly comparing wealth with GDP.]

So, incorporating a new sector, in that where the ultra wealthy are taxed significantly more, it will consequently create leverage in order for there to be enough funding for this policy. It would take a 2% minimum tax increase on

the ultra wealthy in order to do this, (land/wealth tax). However, this figure would need to be calculated from the size of the relevant taxable wealth base and the amount of revenue that a 2% tax would actually generate, rather than assumed in advance. [For this calculation, use ONS data and/or HMRC data on wealth, taxation and tax revenues to establish whether a 2% tax could realistically generate the required amount.]

introduction

By definition, a human right is a fundamental right and freedom that belongs to every person in the world, from birth until death. Human rights encompass a broad spectrum of principles, including civil and political rights, to the right to fair trial. A human right is the basic fundamental that ensures we all have a fair and equal opportunity at life, and that everyone has the equal chance to aid their societal demographic.

Food, something that is a basic fundamental for humans to function, is also what i, and many others would deem as the 'bare minimum', to work, exercise, or any private endeavours from person to person. In the UK, some human rights are protected by law through the Human Rights Act 1998, which involves the European Convention Of Human Rights (ECHR), incorporating their legislature into UK law. Yet, the ECHR only contains little human rights that correlate directly to political liberties. I.E. the right to vote, the right to freedom of expression, etc. These are classed as civil and political rights. On the contrary, the right to food is a socio economic right.

Incorporating the right to food will consequently result in the government having to take a major shift in policy development. This would consequently need; public approval; parliamentary endorsement; and reasoning for financial backing in doing so.

In addition, Article 11 of the International Covenant on Economic, Social and Cultural Rights ensures the right to adequate food as a component of the right of everyone to an adequate standard of living. Article 11, paragraph 2, specifically provides that States parties recognize the fundamental right of everyone to be free from hunger.

The article stating this right is not legally enforceable in domestic courts in the UK. However, it is a legal obligation under international law that is burdened upon the parties within their respective executive bodies to enroll into their policy.

This is where I find the idea of a right to food particularly interesting. The UK has already accepted the principle internationally, yet it has not made the right to food a specific right within UK domestic law. Therefore, there is a difference between recognising something as a right internationally, and actually allowing an individual to rely upon that right within their own country's legal system.

This raises the question of what a 'right to food' would actually mean in practice. If Parliament was to introduce a legal right to food, would that mean the government would have to physically give food to anyone who could not afford it? Or would it instead mean that the government has to make sure people have enough money and opportunity to access food themselves? I think this is an important distinction, because these two ideas would require completely different policies, and would have completely different financial consequences for the government.

I also do not believe that a right to food should simply be interpreted as giving everyone free food. The argument is more about whether every person should have access to enough food to live properly, regardless of their financial position. The United Nations Committee on Economic, Social and Cultural Rights has stated that the right to adequate food is not simply about having enough calories to stop someone from starving. It includes having physical and economic access to food which is adequate, nutritious and safe.

Therefore, when I refer to a 'right to food' throughout this paper, I am not necessarily referring to the government physically providing every meal to every individual. Instead, I am referring to the wider idea that every person should have reliable access to enough food to live and function properly. How this would actually be achieved is something that I will explore later within this paper.

I believe this is also where the argument starts to connect with equality of opportunity. We often discuss equality of opportunity in relation to education and employment. The idea is that people should have the opportunity to succeed regardless of their background or financial position. However, I find it difficult to completely accept that

someone has an equal opportunity if they are struggling to afford the basic necessities required to function.

For example, a child may technically have the exact same access to a school as another child. They may have the same teachers, the same classroom, and the same opportunity to complete their education. But if one child is regularly going without enough food, can we really say that both children have the same opportunity to perform? This does not mean that food insecurity automatically causes someone to perform badly, but it does raise the question of whether providing equal opportunities is enough if people do not have access to the basic necessities needed to take advantage of those opportunities.

This is also why I believe the right to food should not simply be looked at as a welfare issue. It can also be looked at as an issue of freedom, equality and opportunity. If someone is unable to afford enough food, their ability to work, study, exercise and participate normally within society can be affected. Therefore, although food itself may appear to be a very basic issue, the consequences of not having access to it can affect much wider aspects of someone's life.

However, I also recognise that making food a legal right would not automatically solve poverty. Simply declaring that food is a human right would not suddenly give people more money, lower food prices or remove the reasons why people become financially insecure. The government would still need to decide exactly what its responsibility would be, who would qualify for support, and how the policy would actually be funded.

This is where the economic argument becomes important. If the government is given a legal responsibility to ensure that everyone has access to adequate food, then there would obviously be a financial cost involved. The larger the responsibility placed upon the government, the larger the potential cost could become. Therefore, I cannot simply argue that a right to food should exist without also considering whether it is financially realistic.

There would also be questions about whether the government should provide direct financial support, expand free school meals, increase existing welfare payments, provide food directly, or introduce another form of support altogether. Each of these options would have different advantages and disadvantages, and I believe they should all be considered before deciding what a UK right to food would actually look like.

The current legal position therefore creates what I believe is the main question behind this paper. If the UK already recognises the right to adequate food under international law, why has it not been made into a specific legal right within UK domestic law?

In June 2026, the UK Government stated that the right to food is not currently codified in UK domestic law and that there are no current plans to legislate specifically for it. At the same time, the Government confirmed that the UK continues to recognise economic, social and cultural rights under the ICESCR. This therefore shows that the idea of a right to food is not completely foreign to the UK. The principle already exists within international law, but the question is whether it should go further and become part of domestic law.

For me, this is what makes the subject worth researching. I am not simply asking whether food is important, because obviously it is. I am asking whether something that is essential to human survival should create a responsibility for the state to make sure that people can access it. If we accept that people should have certain basic freedoms and protections simply because they are human, then I believe it is worth questioning whether access to the basic necessities required to actually live should be treated in a similar way.

However, this does not mean that I believe there is an obvious or simple answer. There are clear questions surrounding the cost, enforcement, government responsibility, individual responsibility and the role of the private market. Businesses have a legitimate role in producing and selling food, and a right to food would not necessarily mean removing the market from the food system. Instead, the question is whether the market by itself can guarantee that everyone has adequate access to food, particularly those who are unable to afford it.

Therefore, throughout this paper I will look at both sides of this argument. I will look at the philosophical reasons for potentially recognising food as a right, the current level of food insecurity in the UK, the existing legal position, the economic consequences, international examples and the possible problems that could come from introducing such a policy.

Ultimately, my main question is whether access to adequate food should be considered more than simply a necessity for survival. Should it also be considered something that the state has a responsibility to protect? And if the answer is yes, should that responsibility remain an international obligation, or should it become a specific legal right within the United Kingdom?

What Does a "Right to Food" Mean?

What is a human right ?

A human right can have various conceptions to it, a right can be legally defined, it can be a philosophical definition, it can be politically defined, it can be morally defined, etc. There are numerous ways in which you can view a human right, and in this section of my writing I will define what a right actually is, by using different definitions, and making a final whole definition of what I think a right would be in this regard.

In an international and domestic legal framework, a human right is not solely defined by moral ideals, but rather as legally binding claims and state/government obligations towards the public. Institutional definitions, in countries such as the USA, India, France, and Germany; through codified constitutional statements. From a legal standpoint, a human right is a legally binding sentence that defines what a right is. Thus, making it a legally enforceable right, in which if infringed upon, can be legally enforceable upon the individual(s) that breached it. Inherent and Universal human rights are rights that belong to every person by simply being the virtue of a human, without any discrimination based on nationality, status, or identity. Additionally, a human right legally, is inalienable, meaning they can not be taken away or surrendered voluntarily, they are glued to any one human being for as long as they live. And, only under specific circumstances when an individual breaches the law, their liberty is only partially taken. Moreover, the tripartite duty of states requires every country to abide under a law that ensures these countries respect international law and abide by it.

The United Nations establishes these international rights given to people. For example; the universal declaration of human rights 1948, serves as the foundational non-binding "soft law" document that defined basic civil, political, economic, social, and cultural rights globally following World War II. Article 1 establishes that "All human beings are born free and equal in dignity and rights." Secondly, in the International Covenant on Civil and Political Rights 1966, a legally binding international treaty with over 170 state parties, codifies first generation rights, requiring states to thus guarantee protections; such as, in contrast to this writing. The right to life (article 6), and also including several other widely known rights also, such as; prohibition of torture (Article 7), fair trial rights (Article 14), and freedom of expression (Article 19).

Institutional definitions of human rights are often reinforced by each state's respected judiciary, and it is the duty of the judiciary of that state to enforce binding rights that may have been breached by a citizen of their country. E.G. The European Convention on Human Rights (ECHR, 1950), Enforced by the European Court of Human Rights (ECtHR) in Strasbourg. Allows individuals to directly sue member states for violations. An instance, where an individual prosecuted the state would be *Pretty v. United Kingdom* (2002) defined the scope and limits of Article 2 (Right to Life) and Article 8 (Right to Private Life) regarding personal autonomy and end-of-life decisions.

In summary, the legal perspective views a human right as a formal, legally binding rule or codification that clearly outlines the specific entitlements and protections guaranteed to every individual throughout their lifetime. Unlike purely moral or philosophical concepts, a legal right provides an enforceable framework that imposes strict duties on governments and institutions to respect, protect, and fulfill these fundamental freedoms.

In addition to a legal definition of a human right, there are also other perspectives in which a right is defined. Philosophical definitions will have various meanings, on depending on who defined it. Thomas Hobbes, was an influential philosopher, who was one of many that defined what a human right is. He defines a right to be 'an absolute freedom to do whatever is necessary to preserve one's own life. In *Leviathan*, a book written by Thomas Hobbes, it distinguished the law of nature (a duty) and the right of nature (a right). In a state of nature, every person has a right to everything, even to another's body. However, because this implies into a state of perpetual war, individuals trade away most of their natural rights to an absolute sovereign in exchange for physical security. Thus, from Hobbes perspective, a right is an unrestricted liberty to self preservation, that must ultimately be

surrendered to authority to maintain peace within a whole demographic.

Another philosopher who directly opposes Hobbes on this matter is John Locke. Rather than viewing a right as a dangerous, unrestricted license that must be surrendered to a sovereign to avoid perpetual conflict, Locke defines a human right as an inherent, moral entitlement that exists prior to, and independent of, any government or legal system. In his seminal work, *Second Treatise of Government* (1689), Locke argues that in a state of nature, a condition governed by human reason rather than lawlessness, every individual inherently possesses natural rights to life, liberty, and estate.

For Locke, these rights are grounded in the fundamental concept of self-ownership: because every individual owns their own body and mind, no other entity, whether another individual or a monarch, has a legitimate claim to enslave, harm, or strip them of their freedoms. Locke further expands on this through his labor theory of property, asserting that when an individual applies their labor to unowned natural resources, that resource becomes an extension of their person—thus establishing private property as a fundamental natural right.

Crucially, Locke departs from Hobbes by asserting that natural rights are strictly inalienable and cannot be surrendered to an absolute authority. Instead, individuals form a social contract to establish a government for a limited, specific purpose: to act as an impartial trustee that protects these pre-existing rights from being infringed upon by others. If a state or government breaches this fiduciary trust by violating the life, liberty, or property of its citizens, it loses its legal and political legitimacy. Under Locke's framework, citizens retain a fundamental right to revolution—the legitimate moral entitlement to overthrow a tyrannical authority and re-establish a system that honors their natural rights. Thus, from Locke's perspective, a human right is not a privilege granted by a sovereign, but a permanent moral constraint on state power and the foundational prerequisite for constitutional governance.

Both of these opposing philosophical viewpoints on human rights, back how food should be a human right, and moreover justify how food in itself should be a right to all.

From a Hobbesian perspective, the core reason individuals surrender their absolute freedom to a sovereign state is to ensure self preservation and to escape the constant threat of death. Since severe food insecurity and starvation pose an immediate threat to human life, a state that fails to secure basic nourishment for its population undermines the primary reason for its own existence. Thus, If citizens are left to starve, the civil peace folds, returning individuals to a state of nature where they must do whatever is necessary, including theft/violence to survive. Therefore under Hobbes's logic, ensuring access to food is a crucial obligation of the sovereign power to maintain social order, civil security, and the preservation of life.

In opposition, from a Lockean perspective, the right to food flows directly from the fundamental natural right to life and self-preservation. Locke argued in the *Second Treatise of Government* that God gave the earth to humanity in common for their subsistence and comfort, meaning every individual has an entitlement to the resources needed to sustain their life. Furthermore, because Locke defines rights in terms of liberty and property, a person who is deprived of basic food lacks the physical capacity to exercise any other fundamental freedoms or enjoy their natural rights. Thus in this case, access to food is not merely a social benefit, but an essential prerequisite for exercising life and liberty. Consequently, a legitimate government acting as a trustee must protect the conditions that allow individuals to access adequate food, as failing to do so violates the social contract and the primary duty to protect human life.

Both of these, prove how food in itself from a philosophical viewpoint on human rights should be a basic right everyone in poverty should have access too. In relation to the legal definition of a human right also, depending on the state in which it originates from, a vast majority would deem it as a 'sentence' or 'statement' which allows every citizen of said state, to enact upon this right if it is breached, or inaccessible upon those, thus enforcing the law on the state itself.

The UK legal system also regards omissions as that of in some cases, equivalent to an act. For example; defined in common law, gross negligence manslaughter is a voluntary manslaughter offence, and comprises as a defence to a homicide. Additionally, under tort law, omissions again can be seen in various cases as a breach of law.

In addition, as previously stated in this writing, under international law the right to food does exist, and is an 'obligation' for the government to enact upon, in which it clearly doesn't, and instead relies upon the open market to handle the matter, in making profit off a basic necessity, as one of the basic building blocks of life.

Therefore, if widely regarded philosophers have summarized that food should be a right (inadvertently), and the law regards omissions as a crime, in that they are failing to act upon the basic liberties us as humans hold a right too, then it arises the question on as to why food hasn't been a human right in the first place ?

The Current poverty situation

Currently, in 2026 20% of the UK population are living in poverty, this is roughly 14.2 million people, struggling to deliver 3 basic meals a day due to the current cost of living. Many families are struggling financially in their day to day lives, families, including my own, are having limited access to the basics that allow us to live. Such as; fuel, water bills, energy bills, and most importantly, food. For a family of four (two parents and two children), it would cost roughly £5000 to £10000 a year to feed them. Moreover, the average wage for a family of 4 (for the two parents) living in poverty is £30000 a year. Thus, for a struggling family of four, 33% of the money they're taking home is being spent on food alone. Leaving £20000 for other outgoings such as; energy, water, fuel, gas, a mortgage, and other miscellaneous things a family may pay for.

Spending a third of household income on basic food isn't just inconvenient. It forces people into brutal daily choices: heating or meals. Official data makes the scale impossible to ignore. Around 7.2 million people lived in food insecure households in 2022/23 according to the Department for Work and Pensions report. That's 17% of all UK children. Meanwhile, the Food Standards Agency's Food and You 2 survey found 25% of respondents experienced food insecurity. Some worried about running out. Others skipped meals entirely. Numbers like these reveal something stark: food insecurity isn't about poor budgeting or bad choices. It's a structural problem hitting millions who can't cover basic living costs.

So what does the state actually owe its citizens? If everyone has a right to life, shouldn't that include access to food? The UK committed to this internationally. Back in 1976, the UK ratified the UN International Covenant on Economic, Social and Cultural Rights. Article 11 protects "the right of everyone to an adequate standard of living including adequate food." But the UK uses a dualist legal system. International treaties don't become domestic law unless Parliament passes an Act. That's what happened with the European Convention on Human Rights through the Human Rights Act 1998. No domestic "Right to Food Act" exists. So the international commitment stays mostly symbolic. Ordinary people have no legal standing if the state fails to ensure food access.

Critics push back hard. Making food a legally protected right in the UK would create constitutional and financial chaos, they argue. Legally speaking, an enforceable right would hand judges power over public spending and welfare budgets. In UK law, taxation and spending decisions belong to elected MPs in Parliament, not unelected judges. If people could sue the government for inadequate food provision, courts might force ministers to raise benefit rates or regulate food prices. Opponents say this destroys Parliamentary sovereignty and triggers endless costly court battles that drain public money.

But viewing a right to food as pure government spending misses how human rights actually function. International law breaks down into three duties: respect, protect, fulfil. Respecting means government shouldn't create policies pushing people into food poverty. Protecting means stopping supermarkets and energy companies from price-gouging consumers. Fulfilling means acting as a safety net for those who genuinely cannot afford meals. Under this framework, individuals and markets still carry the main load. Government has a legal duty to ensure wages and welfare actually cover basic nutrition though.

Current policy raises hard questions. Is it managing the problem, or making it worse? Emergency food support tells the story. Trussell Trust handed out nearly 3 million food parcels between April 2022 and March 2023, according to a House of Commons Library briefing. That's a 37% jump from the previous year. Five years earlier, demand was half what it is now. Food banks do vital work. But relying on voluntary charities for survival needs means the state abandoned its responsibility. Without legal duty, state support stays vulnerable. Benefit freezes happen. Policies shift. Inflation hits. Charities scramble to fill gaps they can't actually fix.

At the same time, we have to be realistic about what a legal right could actually achieve on its own. Passing a law that says everyone has a right to food isn't going to magically lower supermarket prices or grow more crops overnight. If a Right to Food Act was introduced without broader changes to housing costs, energy prices, and low wages, it might just turn into a nice-sounding gesture that changes very little on the ground. There's also the tricky question of how the law would define "adequate" food—does it mean just enough cheap calories to survive, or does it mean healthy, nutritious, and culturally appropriate food? If the legal standard is set too low, the right becomes meaningless, but if it's set too high, it becomes almost impossible for any government to enforce.

Ultimately, even though the financial and legal concerns raised by critics are valid, the evidence shows that our current system—leaving food security almost entirely to market forces and voluntary charities—is leaving millions behind. Recognising a right to food wouldn't mean the state has to run every farm or supermarket. Instead, it would create a proper legal standard that holds ministers accountable when their economic decisions push families into poverty. Treating food as a basic human right rather than just an everyday commodity seems like a necessary step if the UK is genuinely serious about protecting the basic living standards of its people.

Economic Factors

The right to food, can have the presumption that, if enrolled. May have fatal economic consequences, if executed in the UK. Especially, when it comes to the current economical climate of the UK. However, in some cases, when the right to food has been developed properly, it can prove to be economically beneficial in the long term.

As previously mentioned in this writing, to feed those in poverty in the UK. It would require roughly £25 billion a year. Moreover, this accumulates to about 0.8% of the UK GDP. That is less than a third on what the UK spends on defence a year, 2.6% of the UK GDP. Thus, the right for food would be secondary to primary macroeconomic drivers such as; the NHS, The Public Transport Sector, Welfare, education etc. Thus, introducing a legal right to food has an immediate fiscal cost. However, the relevant question isn't simply how much implementation costs; it is also how much the current lack of food security costs the state and wider economy.

Currently in 2026, the government's financial output towards the NHS is 11.4% of the UK

GDP, which is the highest it has ever been. This is due to overpopulation, the backlash of COVID-19, systematic failure, and an ill-health country. By targeting those in acute poverty and experiencing homelessness, a legal right to food directly addresses the demographic driving the most severe, high cost strain on the NHS. Individuals navigating rough sleeping or deep material hardship face a massive barrier to basic nutrition, forcing them to delay managing their health until it deteriorates into an emergency. Consequently, roughly 50% of the homeless population has to visit an emergency department annually, and a vulnerable 1% of high-intensity users largely driven by homelessness and deprivation accounts for 16% of all aggregate A&E attendances. Guaranteeing consistent, nutritious food to these specific groups fundamentally interrupts this cycle of crisis-driven medicine. Instead of allowing nutritional deprivation to manifest as acute clinical emergencies that require expensive, reactive hospital admissions, an upfront 0.8% GDP investment provides a critical social safety net, directly thinning out the constant influx of vulnerable, high-frequency patients currently buckling the NHS infrastructure.

These two graphs show that implementing a legal right to food in the UK presents an immediate fiscal commitment of approximately £25 billion annually—representing 0.8% of UK GDP—which is less than a third of the nation's 2.6% GDP defence budget and secondary to primary macroeconomic drivers like the NHS, which currently absorbs a peak 11.4% of GDP (£356.3 billion). However, evaluating this policy solely on its upfront cost overlooks the severe economic liabilities of the status quo, where acute poverty and rough sleeping impose disproportionate, high-cost strain on emergency healthcare infrastructure. Currently, 50% of the homeless population requires emergency department care annually due to unmanaged nutritional deficit and health deterioration, while a vulnerable 1% of high-intensity users accounts for 16% of all aggregate A&E attendances. By guaranteeing consistent basic nutrition to these specific high-risk groups, a legal right to food directly interrupts this cycle of reactive, crisis-driven hospital admissions. Rather than allowing nutritional deprivation to manifest as expensive clinical emergencies that buckle NHS resources, an upfront 0.8% GDP investment functions as a critical social safety net that thins out high-frequency emergency attendances, delivering long-term economic benefits and fiscal relief to state infrastructure.

How the policy would be funded

There are several ways that the right for food can be funded. Roughly, the right for food will cost the UK government £25 Billion a year to feed those in poverty. The right for food would consequently be available for those in; unemployment, heavy financial disbarment, rough sleepers, and for children within the education system where the parental figure(s) are in the lower tax bracket. Thus, the right for food would be seen as a nationwide right, anyone has access to but will be available as a benefit, to those who qualify for it.

Individuals that are placed in the higher or middle income tax bracket statistically show that they have sufficient access to food being sold by open market institutions, however in the lower tax bracket 15% of households who are under the lower tax bracket struggle to access food, again from these open market corporations. Moreover, 4% of households in the UK have to use critically underfunded foodbanks in order to gain access to less than basic nutrition. Finally, 34% of those using food banks have been currently, or experienced homelessness in the past. Therefore it can be evaluated that this right would be available towards those who qualify I.E struggle to obtain basic nutritional necessities.

Taxation

The easiest way in that this right could be funded would be through a general rise in taxation combined across higher income, wealth, and corporate activity. Currently, the percentage of tax subtracted from an individual's income that earns over £125,140 is 45%. Leading them to take home £159,547 on average (based on an average additional-rate income of £265,000). Roughly, 3% of the UK's population are currently in this area of the tax bracket. Thus, taking into account total actual earnings across this group, the UK currently gains £119.2 billion in total income tax from them.

Rather than placing the entire £25 billion burden on a single, drastic income tax hike—which would heavily alienate top earners—a sporadic, multi-tiered strategy generates the full £25 billion while maintaining broad public and high-earner consensus:

A Minimal 2% Income Tax Uprise (£2.8 Billion): A minimal 2% uprise in the additional higher tax bracket (to 47%) on income over £125,140 generates an extra £2.8 billion, leaving the average additional rate tax payer taking home £156,750 instead—resulting in them losing just £2,797 a year, a manageable shift that avoids tax flight.

Capital Gains & Wealth Equalization (£8.5 Billion): Aligning Capital Gains Tax on investment profits closer to standard income tax rates raises £8.5 billion by ensuring unearned wealth from stocks and assets is taxed at the same standard as physical labor.

Plugging Offshore & Non-Dom Loopholes (£4.5 Billion): Abolishing remaining non-domiciled tax advantages and closing high-net-worth inheritance tax loopholes reclaims £4.5 billion currently lost to aggressive tax planning.

High-Value Luxury Property Levy (£2.5 Billion): Introducing a 1% annual tax on secondary residential properties valued over £2 million yields £2.5 billion, targeting idle luxury assets without impacting standard homeowners.

Carbon & Digital Corporate Taxes (£6.7 Billion): The remaining £6.7 billion is secured through a Carbon Border Adjustment Mechanism on high-emission imports (£3.5 billion) and an expanded Digital Services Tax on tech multinationals (£3.2 billion).

By spreading the tax burden across these five distinct pillars, the state successfully raises the entire £25 billion target while ensuring 97% of the UK workforce sees zero tax increase on their monthly paychecks

Thus, through a general uprise in broader taxation it could be assumed that generating £25 billion is very much possible through slight arising tax sporadically widened through 5 separate pillars.

Arguments against

There are obviously arguments against making food a human right, and I believe these need to be taken seriously. It would be very easy for me to simply argue that food is a basic human necessity and therefore should

automatically become a legal right. However, I don't think this would be a fair analysis. There are genuine limitations to the policy, especially when considering the economic cost, government responsibility, individual responsibility, and how the right would actually work within the UK legal system.

Cost

The most obvious criticism of a right to food is the financial cost. As previously mentioned in this writing, I have estimated that providing access to food for those in poverty could cost roughly £25 billion a year. This is a significant amount of money, especially considering the current economic climate of the UK. If the government was legally responsible for making sure everyone had access to adequate food, this could place a major financial burden upon the state.

This raises an important question. If the government spends £25 billion on the right to food, where does that money come from? It could mean higher taxation, reductions in other areas of government spending, or increased government borrowing. There are already major areas of public spending such as the NHS, education, welfare and public transport which require significant financial investment.

However, I don't believe that the cost alone should mean that the idea should be rejected. The question should instead be whether the cost of not dealing with food insecurity is also significant. If people are unable to afford adequate food, this can contribute towards wider poverty, poor health and an increased reliance on other areas of the state. Therefore, the government would have to consider both the immediate cost of introducing the right and the potential long-term costs of continuing with the current system.

There is also an important limitation to my own argument here. £25 billion is only an estimate and would depend heavily on exactly what the right to food means. If the government was expected to provide food to every person in the country, the cost would be significantly different from a policy targeted towards people who are genuinely unable to afford adequate food. Therefore, I cannot simply state that the policy would cost £25 billion and assume that this would be the exact cost of implementation.

Government overreach

Another criticism is that making food a human right could result in the government having too much control over something which is currently largely operated through the private market. If the government becomes legally responsible for ensuring that everyone has access to adequate food, it could potentially lead to increased regulation of supermarkets, food producers and other private businesses.

This could also create the question of how far government responsibility should actually go. If someone chooses to spend their money on something other than food, should the government then be responsible for making sure that person still has enough food? If someone chooses to buy expensive food, should the government intervene? There has to be a limit to what the state is responsible for.

I do not believe that a right to food should mean that the government controls what people eat. As I have already stated earlier in this writing, I am not arguing that the government should physically provide every meal to every individual. I am arguing that people should have reliable access to enough food to live and function properly.

Therefore, the right should protect access to food rather than control individual choices. The market could still exist, supermarkets could still make profits, and individuals could still decide what they want to eat.

However, this is still a limitation of the policy. The legislation would need to be extremely clear about where government responsibility ends. If the definition is too broad, the government could become responsible for almost every aspect of an individual's food choices.

Individual responsibility

Another argument against the right to food is individual responsibility. Some may argue that people should be responsible for providing food for themselves and their families, rather than expecting the government to provide it for them.

There is some legitimacy to this argument. A government cannot realistically be responsible for every financial decision that an individual makes. People have different incomes, different spending habits and different circumstances. If a right to food was interpreted as the government having to provide food regardless of an individual's financial decisions, it could create a system where personal responsibility is reduced.

However, I don't believe that this is what a right to food should mean.

There is a major difference between saying that the government should provide everyone with free food and saying that nobody should be left without adequate food because they cannot afford it. Someone who is working, paying their bills and attempting to support themselves but still cannot afford enough food is in a completely different situation to someone who simply chooses not to buy food despite having the financial ability to do so.

This is where I believe the right to food could act as a safety net rather than a replacement for individual responsibility. Individuals would still be responsible for their own lives, but the state would have a responsibility to prevent people from falling below a basic level of human existence.

The limitation is that this creates a difficult boundary. The government would need to establish who genuinely needs assistance and who is capable of providing for themselves. This could create complicated eligibility requirements and could also lead to disagreements over who should receive support.

Difficulty defining "adequate food"

Another major problem is the definition of the word "adequate."

If food is made into a legal right, what exactly counts as adequate food? Is it simply enough food to stop someone starving? Does it have to be nutritious? Does it have to include fresh fruit and vegetables? Should cultural or religious dietary requirements be included?

This is a serious problem because if the definition is too low, the right could become almost meaningless. If the government only has to make sure that someone has enough calories to survive, then it may technically satisfy the right while people are still eating an unhealthy and inadequate diet.

On the other hand, if the definition is too high, the government could become responsible for providing a very expensive standard of food to people who are struggling financially.

I therefore believe that the right should focus on access to food which is adequate, nutritious and safe, rather than simply providing the cheapest possible food. This would also fit with the wider international understanding of the right to adequate food that I have discussed earlier in this writing.

However, I recognise that this still leaves a question about exactly where the threshold should be. There would have to be a clear legal definition of "adequate food" so that the right could actually be enforced.

Judicial overreach

A further criticism is the role that judges could play if the right to food became legally enforceable.

As I have previously discussed, Parliament currently has control over taxation and government spending. If a right to food was made legally enforceable, however, individuals could potentially take the government to court if they believed that the government had failed to protect their access to adequate food.

This could create a situation where judges are effectively making decisions about government spending. For example, if a court decided that current welfare payments were not enough to allow someone to access adequate food, could the government then be legally required to increase those payments?

Critics could argue that this would interfere with parliamentary sovereignty because decisions about how taxpayers' money is spent should ultimately be made by elected representatives in Parliament, rather than judges.

I believe this is a legitimate criticism and one which should not simply be ignored. However, I don't think making food a right would necessarily mean that judges would control the government's entire budget. Parliament could

create a right which establishes a minimum legal obligation while still allowing the government to decide how that obligation is fulfilled.

The limitation is that there would still be some judicial interpretation. Therefore, the wording of any Right to Food Act would be extremely important. If Parliament creates a right without clearly explaining what the government's responsibility actually is, the courts could potentially be left to determine its meaning.

Bureaucracy

Another issue is bureaucracy. Introducing a new legal right would require a system to determine who needs assistance, what qualifies as adequate food, how the government is complying with its responsibilities and how complaints are dealt with.

This could create additional costs and could make an already complicated welfare system even more complicated.

However, I don't believe that this necessarily means the policy could not work. The UK already collects data about food insecurity and already has systems designed to provide financial and welfare support to people who need it. Therefore, a right to food could potentially be incorporated into existing systems rather than creating an entirely new system from scratch.

The limitation is that this could still create additional administration. If the policy is badly designed, money intended to help people could instead be spent on managing the system itself.

Therefore, any Right to Food Act would need to clearly establish which government departments and organisations are responsible for implementing it.

Unintended consequences

Finally, there is the possibility of unintended consequences.

Simply passing a law which states that everyone has a right to food would not automatically make food cheaper. It would not automatically increase people's wages, reduce rent, reduce energy bills or remove poverty. As I have already stated earlier in this writing, simply declaring food to be a human right would not suddenly give people more money.

This means that there is a danger that the policy could become more symbolic than practical. The government could technically recognise a right to food while people still struggle with the cost of living.

There could also be unintended consequences for businesses if the government attempted to force supermarkets or food producers to reduce prices. Increased regulation could potentially increase the costs faced by businesses, which could then have consequences for consumers.

However, I don't believe that these problems necessarily disprove the principle behind the right to food. Instead, they show that the policy would need to be introduced alongside other measures dealing with poverty, wages, housing and the cost of living.

Ultimately, I recognise that there are serious criticisms of making food a human right. It would cost money, it could create additional bureaucracy, it could raise questions about individual responsibility and it could potentially increase the involvement of the courts in government policy.

However, I do not believe that these limitations mean that the idea should automatically be rejected. They instead demonstrate that the most important question is not simply "should food be a human right?", but "what should a UK right to food actually look like?"

If it is designed as an unlimited promise by the government to provide food to everyone, then the economic and legal criticisms become significantly stronger. However, if it is designed as a minimum legal responsibility for the state to ensure that people are not left without access to adequate food, while still allowing individuals and the private market to operate, then many of these criticisms can be reduced.

Therefore, I recognise that a right to food would not be a perfect solution to poverty. It would not remove the need for individual responsibility, it would not eliminate the market, and it would not remove the financial pressures facing the government. However, I believe it could create a legal responsibility for the state to ensure that the most basic requirement for human life is not completely dependent upon whether an individual can afford it.

Conclusion

After researching the legal, philosophical, economic and social arguments surrounding the right to food, I believe that access to adequate food should be recognised as a specific legal right within the United Kingdom.

However, I do not believe that this means the government should simply provide free food to every person in the country. Throughout this writing, I have found that there is a major difference between saying that everyone should be given food, and saying that everyone should have reliable access to enough food to live properly. For me, the second argument is what a right to food should actually be about.

Food is different from many other commodities because it is a basic requirement for human life. Without it, a person cannot properly work, study, exercise, or participate within society. This is why I find it difficult to accept that access to food should be treated purely as a product which someone can only obtain if they have enough money to purchase it.

The current situation in the UK also demonstrates why I believe this question needs to be taken seriously. Millions of people experience food insecurity, while charities and food banks continue to provide emergency support to people who cannot afford enough food. I recognise that food insecurity is a complicated issue, and that poverty cannot simply be solved by declaring food a human right. However, I believe the fact that people are struggling to access such a basic necessity raises a serious question about what responsibility the state should have towards its citizens.

I also recognise the arguments against my position. The cost of the policy could be significant, there could be problems defining what "adequate food" actually means, and giving the right legal enforcement could create questions surrounding parliamentary sovereignty and the role of the judiciary. There is also a genuine argument that individuals should retain responsibility for providing for themselves where they are financially capable of doing so.

These are limitations which I cannot simply ignore. In fact, I believe acknowledging them makes the argument stronger because a right to food should not be presented as a perfect solution. It would not eliminate poverty, it would not automatically reduce food prices, and it would not remove the need for individual responsibility.

Instead, I believe the purpose of a right to food should be to establish a minimum responsibility upon the state. The government should not necessarily be responsible for giving everyone food, but it should be responsible for ensuring that people are not left without adequate food simply because they cannot afford it. This could be achieved through a combination of welfare support, free school meals, targeted assistance and other policies, rather than the government taking control of the entire food market.

Ultimately, the question I have tried to answer throughout this writing is whether food should be considered more than simply a necessity for survival. I believe it should. If we accept that every person has a fundamental right to life, liberty and the opportunity to participate equally within society, then I find it difficult to understand how access to the basic necessity which allows someone to actually live can be treated as completely separate from those rights.

The UK has already recognised the principle of adequate food through its international obligations. The question is therefore not whether food is important enough to matter. It clearly is. The question is whether the existing approach provides enough protection for those who cannot access it.

In my view, it does not.

I therefore believe that the United Kingdom should move towards recognising a legally protected right to adequate food. However, this right should be carefully defined, financially realistic and focused on ensuring access rather

than creating unlimited government responsibility. Food should remain available through the market, individuals should retain responsibility where they are able to provide for themselves, and Parliament should retain control over how the policy is funded and implemented.

For me, the principle is ultimately quite simple. Food is the bare minimum required for a human being to live. If we accept that human beings have fundamental rights simply because they are human, then I believe it is reasonable to question why access to something as fundamental as adequate food should not receive the same level of protection.